

The Central Warehousing Corporation Rules, 1963

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Union of India - Act

The Central Warehousing Corporation Rules, 1963

UNION OF INDIA

India

The Central Warehousing Corporation Rules, 1963

Rule THE-CENTRAL-WAREHOUSING-CORPORATION-RULES-1963 of 1963

Published on 6 April 1963

Commenced on 6 April 1963

[This is the version of this document from 6 April 1963.]

[Note: The original publication document is not available and this content could not be verified.]

The Central Warehousing Corporation Rules, 1963

Published vide Notification in the Gazette of India, 1963, Part 2, Section 3(i), page 671.

1756.

G.S.R. 635, dated the 6th April, 1963. - In exercise of the powers conferred by Section 41 of the Warehousing Corporations Act, 1962 (58 of 1962), the Central Government hereby makes the following rules, namely:

Chapter I

PRELIMINARY

1.

Short title.

- These rules maybe called the Central Warehousing Corporation Rules, 1963.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Warehousing Corporations Act, 1962 (58 of 1962);

(b)

"Board" means the board of directors referred to in section 6;

(c)

"Chairman" means the Chairman of the Board appointed under sub-section (4) section 7;

(d)

"Corporation" means the Central Warehousing Corporation established under section 3;

(e)

"director" means a director of the Board;

(f)

"Executive Committee" means the Executive Committee of the Corporation constituted under sub-section (1) of section 12;

(g)

"Form" means a form appended to these rules;

(h)

"General Fund" means the General Fund referred to in sections 15 and 17;

(i)

"managing director" means the managing director of the Corporation;

(j)

"register" means the register of shareholders referred to in rule 19;

(k)

"section" means a section of the Act;

(l)

"Warehousing Fund" means the Central Warehousing Fund referred to in sections 15 and 16.

Chapter II

NOMINATION AND ELECTION OF DIRECTORS AND APPOINTMENT OF FINANCIAL ADVISER

3.

[Nomination of directors.

[Substituted by Notification No. G.S.R. 732(E) dated 30.11.2006 (w.e.f. 6.4.1963).]

- The Central Government shall nominate the following persons as directors under clause (a) of sub-section (1) of Section 7, namely:-

(i)

two officers not below the rank of Joint Secretary to the Government of India in the Ministry of Consumer Affairs, Food and Public Distribution (Department of Food and Public Distribution);

(ii)

four non-official directors, selected by the Search Committee as envisaged in the guidelines issued by the Department of Public Enterprises.]

4.

Term of office of directors and filling of casual vacancies among directors.

(1)

the term of office of the non-official director nominated under clause (vi) of rule 3 shall be two years from the date of his nomination as such director.

(2)

The term of office of a director nominated by the Central Government under the proviso to sub-section (1) of section 7, for the first constitution of the Board shall be two years :

Provided that the Central Government may extend the term of office of such director for a further period not exceeding one year.

(3)

[A director nomination under clause (d) or clause (e) or clause (f) of sub-section (1) of section 7, shall hold office for a period of three years from the date of his election or until a successor is elected in his place, whichever is later.]

[Substituted by Notification No. G.S.R. 704(E) dated 15.11.2006]

(3A)

[The term of office of the managing director/appointed under clause (g) of sub-section (1) of section 7 shall be two from the date of his appointment.]

[Substituted by G.S.R. 294, ated 27.2.1964]

(4)

Subject to the provisions of sub-rule (7) a casual vacancy in the office of director shall be filled by [election or nomination or appointment]

[Substituted by G.S.R. 294, ated 27.2.1964]

by the authority competent to [elect or nominate or appoint]

[Substituted by G.S.R. 294, ated 27.2.1964]

and a director [elected or nominated or appointed]

[Substituted by G.S.R. 294, ated 27.2.1964]

shall hold office for so long until as the director whose place he fills, would have been entitled to hold office if the vacancy had not occurred :

Provided that no casual vacancy occurring within three months of the date of expiry of the normal term of office of a director shall be filled under this sub-rule.

(5)

A non-official director nominated under clause (vi) of rule 3 may resign his office by writing under his hand addressed to the Central Government and such resignation shall be effective from the date on which it is accepted by the Central Government or on the expiry of a period of one month from the date of its receipt by the Central Government, whichever is earlier.

(6)

An elected director may resign his office by writing under his hand addressed to the Chairman and such resignation shall be effective from the date on which it is accepted by the Chairman or on the expiry of a period of one month form the date of its receipt by the Chairman, whichever is earlier.

(7)

A casual vacancy occurring amongst the directors nominated by the Central Government for the first constitution of the Board in pursuance of the proviso to sub-section (1) of section 7 shall be filled by the Central Government.

5.

Election of directors to Executive Committee.

-The Board shall elect from among themselves two directors one of whom shall be from among the three directors referred to in clauses (d), (e) and (ft of sub-section (1) of section 7.

6.

Resignation of non-official members of the Executive Committee.

- A director nominated under clause (b) or clause (c), or a director elected under clause (d), clause (e) or clause (f), of sub-section (1) of section 7, may resign his office by writing addressed to the Chairman and such resignation shall be effective from the date on which it is accepted by the Chairman or on the expiry of a period of one month from the date of its receipt by the Chairman, whichever is earlier :

Provided that every resignation of a director nominated under the said clause (b) or clause (c) shall be addressed to the Chairman through the authority which nominated him as director.

7.

Sub-Committees.

- The Board may appoint as many sub-committees from among its directors as it may deem necessary for the efficient performance of its functions.

8.

Filling of vacancies.

- Any vacancy arising among directors. elected in pursuance of clauses (d), (e) and (f) sub-section 7 shall be filled within three months from the date when such vacancy occurs.

9.

Nomination of candidates for directorship.

(1)

No candidate for election as a director shall be validly nominated unless-

(a)

he is, on the last date for receipt of nomination, not disqualified to be a director under section 8;

(b)

he is nominated by a shareholder of the class of holders in respect of which the election is to be held;

(c)

the nomination is in writing signed by a duly authorised representative of the shareholder.

(2)

Notwithstanding anything in sub-rule (1), a nomination may also be made by a resolution passed by the Board of Directors, managing committee or governing body, as the case may be, of the shareholding Institution on whom the management of the affairs of the Institution is vested and where a nomination is so made, a copy of the resolution certified to be a true copy by the Presiding Officer of the Board of Directors, managing committee or governing body, shall be forwarded to the Head Office of the Corporation, whereupon such copy shall be deemed to be a nomination duly made under this rule.

(3)

No nomination shall be valid unless it is received in the Head Office of the Corporation not less than fourteen days before the date fixed for the election.

10.

Publication of list of candidates for directorship.

(1)

On the first working day following the last date fixed for the receipt of nomination papers, the chairman shall take the same into consideration. He shall, after such enquiry, if any, as he thinks necessary, accept or reject the nomination of any candidate. Any persons aggrieved by the decision of the Chairman, may, within seven days of the orders of the Chairman, accepting or rejecting the nomination of any candidate, appeal to the Central Government whose decision thereon shall be final.

(2)

If the number of valid nominations for any category is equal to the number of vacancies to be filled in that category, the candidate or candidates so nominated shall be declared to be duly elected and the meeting of the shareholders called for the purpose may be cancelled.

(3)

If the number of valid nominations for any category exceeds the number of vacancies to be filled in that category, the Chairman shall cause the names and addresses of the candidates validly nominated to be published in the Gazette of India and in at least three newspapers in India.

11.

Preparation of list of shareholders.

(1)

For the purpose of election of a director under clause (d), clause (e) or clause (f) of sub-section (1) of section 7, a separate list of shareholders of each class shall be prepared at least four weeks before the date of the meeting at which the election is to be held and the shareholders of each class shall be eligible to vote in the election of director representing their class only.

(2)

Every such list shall be made available for purchase at a price of fifty naye paise for each copy on application at the head office of the Corporation.

(3)

[Every shareholder entitled to vote who is present by proxy or is represented by a duly authorised representative shall have one vote for each share held by his for the whole period of three months prior to the date of such meeting :-

Provided that, notwithstanding anything contained in this rule, no share holder shall exercise, at any meeting held for the purpose of election of directors, any voting right in respect of any shares registered in his name on which any calls or

other sums payable by him at that time have not been paid, or in regard to which the Corporation has exercised any right of lien.]

[Substituted by G.S.R. 148, dated 29-9-1964]

12.

Particulars relating to vacancy to be specified and manner of election.

-

(1)

Whereat any meeting an election is to be held, the particulars relating to the vacancy shall be specified in the notice convening the meeting and separate meetings may be convened of different classes of shareholders mentioned in clauses (d), (e) and (f) of sub-section (1) of section 7.

(2)

Every election of directors shall be conducted by vote by ballot.

(3)

[* * *]

[Omitted, ibid]

(4)

[Votes at any meeting at which an election is to be held may be given either by proxy or by any duly authorised representative.

(5)

No document relating to the appointment of a proxy shall be valid unless-

(a)

it is in Form 'A' duly signed by the shareholding institution under its common seal or by its duly authorised attorney;

(b)

it is dated and it bears a stamp of the value prescribed for proxy under Schedule I to the Indian Stamp Act, 1899 (2 of 1899

); and

(c)

it is deposited at the head office of the Corporation, together with the power of attorney or a copy thereof certified by a notary public, in cases where it is signed by the attorney duly authorised by the shareholding institution, not less than four days before the date fixed for the meeting.

(6)

A shareholding institution may, by resolution of its Board of Directors, managing committee or governing body, authorise any of its officials or any other person to act as its representative at any meeting at which an election is to be held and no person shall attend or vote at that meeting as duly authorised representative unless a copy of that resolution certified to be a true copy by the Chairman of the said institution or the presiding officer of the Board of Directors, managing committee or governing body of the said institution, is deposited at the head office of the Corporation, not less than four days before the date fixed for the meeting.

(7)

Every appointment of a duly authorised representative under this rule shall, after the deposit of the certified copy of the resolution under sub-rule (6), be irrevocable for the meeting for which it is made and shall supersede any document relating to the appointment of a proxy for that meeting deposited under sub-rule (5).

(8)

No person, who is an employee of the Corporation, shall be appointed as a proxy or a duly authorised representative under this rule.

(9)

The decision of the authority presiding at any meeting at which an election is to be held as respects the eligibility of any shareholder to vote, shall be final.]

[Substituted by G.S.R. 148, dated 29.9.1964]

13.

Publication of names of directors elected.

- The names and addresses of the directors declared duly elected shall be published in the Gazette of India.

14.

Appointment of Financial Adviser.

- The board shall appoint, with the approval of the Central Government, a Financial Adviser to advise the Corporation on all matters relating to revenue and expenditure.

Chapter III

SHARES OF THE CORPORATION

15.

Shares to be movable property.

- The shares of the Corporation shall be movable property.

16.

The shares to be under the control of the Board.

- Subject to the provisions of the Act and these rules, the shares of the Corporation shall be under the control of the Board.

17.

Conditions of first allotment of shares.

(1)

The first allotment of shares shall be made by the Board in accordance with the provisions of section 4 to applicants who are qualified to be registered as shareholders of the Corporation.

(2)

The Board may make allotment to the applicants for shares either in full or in part, depending on the number of applicants from the class of shareholders concerned. The Board, shall, as far as practicable make full allotment in respect of application for smaller number of shares so that there may be as many shareholders of that class as possible.

(3)

The decision of the Board as to whether in a particular application for shares there shall be full partial or no allotment shall be final.

18.

Joint holding of shares.

- The Corporation shall not recognize the joint holding of shares.

19.

Share Register.

(1)

The Corporation shall maintain at its head Office a register of shareholders qualified under the Act to be registered therein and shall enter there in the following particulars, namely:

(a)

the name and address at which each shareholder has his principal place of business;

(b)

the categories specified in sub-section (2) of section 4 under which the shareholder is qualified to be so registered;

(c)

the date on which each person is entered as a shareholder, the manner in which he acquires the share and, except in the case of first allotment, the name of the previous holder;

(d)

the date on which each person ceases to be a shareholder and the name of the person to whom and the ledger to which the share is transferred.

(2)

In the register, a separate ledger shall be maintained in respect of each of the categories of shareholders referred to in sub-section (2) of section 4.

20.

Inspection of Register.

(1)

The register, except when closed under rule 21, shall be open to inspection by any shareholder, free of charge, at the Head office of the Corporation during business hours, subject to such reasonable restrictions as the Corporation may

impose, so however that not less than two hours in each day may be allowed for inspection.

(2)

A shareholder shall not have the right to make a copy of any entry in the register by himself, but may, except when the register is closed under rule 21, require a copy of the register or any part thereof, on pre-payment therefor at the rate of fifty Naye paise for every one hundred words or fractional part thereof required to be copied.

21.

Closure of Register.

- The Board may, by giving notice by advertisement, close the register for a period of forty-five days in any year, but not exceeding thirty days at one time, as may be necessary.

22.

Share Certificate.

(1)

Every share certificate shall be issued under the common seal of the Corporation.

(2)

Every share certificate shall specify the number and denote numbers of the share in respect of which it is issued and shall be issued within three months of the date of application.

23.

Entitlement of share Certificate.

(1)

The Central Government and the State Bank of India shall each be entitled, free of charge, to one certificate for all the shares registered in its name at a time.

(2)

Every shareholder other than the Central Government and the state Bank of India shall be entitled, free of charge, to one certificate for each five shares registered in its name. If any shareholder requires more than one certificate for each five shares held by it, the shareholder shall pay for each additional certificate a sum of Re. 1. A shareholder holding less than five shares shall however be entitled, free of charge, to one share certificate, and if more than one certificate is required, the shareholder shall pay for each additional certificate a sum of Re. 1.

24.

Issues of new certificate in place of worn-out, defaced, etc., certificates,

(1)

If any share certificate is worn-out or defaced or tendered for sub-division, then, upon production thereof at the Head office of the Corporation the Corporation may order the same to be cancelled and issue a new certificate or certificates in lieu thereof on payment of a sum of Re. 1. and any incidental expenses which the Corporation may have incurred in connection with the issue of the new certificate or certificates.

(2)

If any share certificates is alleged to be lost or destroyed then, upon production of such evidence of the loss or destruction thereof, as the Board may consider satisfactory, and upon such indemnity, with or without security, as the Board may require, a new certificate in lieu thereof may be given to the party entitled to such loss or destroyed certificate, provided that no such certificate shall be issued without first giving notice to the public published in local newspapers and inviting objections, if any, within a week of the notice, where a new certificate is issued in lieu of a lost or destroyed certificate, the person to whom the new certificate is issued shall be liable to pay to the Corporation all expenses incidental to the investigation of evidence of loss or destruction and the preparation of the requisite form of indemnity as aforesaid.

25.

Corporation to have lien on shares.

- The Corporation shall have a first lien on all shares registered in the name of each shareholder and on the proceeds of the sale thereof for its debts, liabilities and engagements, solely or jointly, with any other person to or with the Corporation, whether the period for payment, fulfilment or discharge thereof shall have actually arrived or not; and such lien shall extend to all dividends declared from time to time in respect of such shares, Unless otherwise agreed, the registration of a s transfer of shares shall separate as a waiver of the Corporation's lien, if any, on such shares.

26.

Shareholders disqualified to give intimation to the Board.

(1)

It shall be the duty of every institution registered as a shareholder, for therewith, upon ceasing to be qualified to be so registered, to give intimation thereof to the Board.

(2)

The Board may, at any time, cause such enquiry to be made as it may consider necessary, for ascertaining whether any institution registered as a shareholder has ceased to be so qualified and upon being satisfied about this, it shall intimate the shareholder that the shareholder is not entitled to be a shareholder of the Corporation. On such intimation, the shareholder shall not be entitled to the payment of any dividend on any such share or to exercise any of the rights of a shareholder otherwise than for the purpose of the sale of such share and the corporation shall make an entry in the register to that effect.

(3)

If the Board finds that an institution, which is not qualified to be a shareholder of the Corporation, is registered by inadvertence of otherwise as a shareholder of the Corporation, it shall inform such shareholder that the shareholder is not entitled to the payment of any dividend on such share or to exercise any of the rights of a shareholder otherwise than for the purpose of the sale of such share and shall make an entry in the register to that effect.

27.

Instalments on shares to be duly paid.

- If, by the condition of allotment of any share, the whole or any part of the amount or issue price thereof shall be payable by instalments, every such instalment shall, when due, be paid to the Corporation by the institution which, for the time being, shall be the registered holder of the share.

28.

Trust not recognised.

- Save as here in otherwise provided, the Corporation shall be entitled to treat the registered holder of any share as the absolute owner thereof and accordingly, shall not, except as ordered by a court of competent jurisdiction or as by statute required be bound to recognise any equitable or other claim to any interest in such share on the part of any other person.

29.

Calls.

- The Board may, from time to time, make such calls as it thinks fit, upon the shareholders in respect of moneys unpaid on the shares held by them repetitively and not by the conditions of allotment thereof made payable at fixed times and each shareholder shall pay the amount of every call so made on such shareholder to the persons and at the times and places appointed by the Board.

30.

Power of Corporation to fix different call amounts.

- The Corporation may, for reasons to be recorded in writing, fix different amounts to be paid by different classes of shareholders on calls made by it and different times of payment of such amounts.

31.

When calls deemed to have been made.

- A call shall be deemed to have been made at the time when the resolution of the Board authorising such call was passed and a notice of call issued to the shareholders specifying the time and place of payment and to whom such call shall be paid. Not less than fifteen days time from the date of issue of such notice shall be given to the shareholders for such payment.

32.

Payment of interest on call or instalment.

(1)

If the sum payable in respect of any call or instalment is not paid on or before the day appointed for payment thereof, the holder for the time being of the share in respect of which the call has been made shall pay interest for the same at the rate of nine percent. per annum or at such other rate as the Board may determine, from the day appointed for the payment thereof to the date of actual payment.

(2)

The board may in its absolute discretion waive payment of interest under this rule.

33.

Evidence in action for call.

- At the trial or hearing of any action for the recovery of any money due for any call, it shall be sufficient to prove that the name of the shareholder sued is entered in the register as a holder, that the resolution making the call is duly recorded in the minute book, in pursuance of these rules; and it shall not be necessary to prove the constitution of the Board which makes such call or other matter what so ever, but the proof of the matter aforesaid shall be a conclusive evidence of the debt.

34.

Payment of calls in advance

- The Board may, if it thinks fit, receive from any shareholder willing to advance the same all or any part of the capital due upon the shares held by such shareholder beyond the sums actually called for; and upon the amount so paid in advance or so much thereof as from time to time exceeds the amount of the calls then made upon the shares in respect of which such advance has been made, the Corporation may pay interest at such rate as the shareholder paying such sum in advance and the board may agree upon.

35.

Payment of allotment money to be deemed as all.

(1)

Any sum which by the term of issue of shares becomes payable on allotment shall be deemed to be a call duly and payable on the date on which by the term of issue, such sum becomes payable.

(2)

In case of non-payment of such sum, all the relevant provisions of these rules with respect to payment of interest and expenses, furniture or otherwise, shall apply as if such sum had become payable by virtue of a call duly made and notified.

36.

Notice to be served on defaulting shareholders.

- If any shareholder fails to pay any call or instalment on or before the day appointed for the payment of the same, the Board may at any time thereafter, during such time as the call or instalment remains unpaid, serve notice on such shareholder requiring the shareholder to pay the sum together with any interest that may have accrued and all expenses that may have been incurred by the Corporation by reason of such non-payment.

37.

Form of notice for payment of call or instalment etc.

- The notice for payment of call or instalment shall name a day and a place or places on and at which such call or instalment and such interest and expenses are to be paid. Such notice shall also state that in the event of non-payment at or before the time and at the place or places appointed, the shares in respect of which a call was made or instalment is payable, will be liable to be forfeited.

38.

Forfeiture of shares.

- If any notice served under rule 36 is not complied with, any shares in respect of which notice has been given may, at any time after service of the notice but before payment of all calls or instalments, interest and expenses, due in respect thereof, be forfeited by a resolution of the Board to that effect. Such forfeiture shall include all dividends declared in respect of the forfeited shares and not actually paid before the forfeiture.

39.

Shares forfeited to be property of Corporation.

- Any share forfeited under rule 38 shall be deemed to be the property of the corporation and the Board may sell real lot or otherwise dispose of the same in such manner as it thinks fit, subject to the provisions of section 4.

40.

Power to annul forfeiture.

- The board may, at any time before any shares forfeited under rule 38 are sold, re-allowed or otherwise disposed of annul the forfeiture thereof upon such conditions as it thinks fit.

41.

Payment of arrears.

- Any shareholder whose shares have been forfeited under rule 38 shall notwithstanding the forfeiture, be liable to pay all moneys inclusive of interest and expenses owing upon or in respect of such arrears at the time of forfeiture together with interest thereon from the date of forfeiture until payment at nine per cent. per annum.

42.

Dividend.

(1)

No dividend shall be declared or paid except out of the profits of the Corporation or out of moneys provided by the Central Government for payment of dividend in pursuance of the guarantee given under sub-section (1) of section 5.

(2)

The dividend shall be paid to persons whose names are entered in the register at the time of declaration of the dividend.

(3)

The dividend shall be payable in proportion to the amount paid up on each share before the expiry of the year for which the dividend is declared :

Provided that, in the case of shares allotted or calls made in the course of the year for which the dividend is declared the dividend shall be payable only in proportion to the period of the year from the date of allotment or, as the case may be, from the date fixed for payment of call money.

(4)

The dividend shall not bear any interest.

Chapter IV

MISCELLANEOUS

43.

Maintenance of and operation upon Bank Accounts and investment.

(1)

Subject to the provisions of this rule, all moneys belonging to the Corporation, shall be deposited in the Reserve Bank or the State Bank or any subsidiary of the State Bank or in such Scheduled Bank or Co-operative Bank as may be approved for this purpose by the Central Government to the account of the Corporation.

(2)

All payments by or on behalf of the Corporation shall be made by cheques except payment of amounts not exceeding Rs. 500 which may be made in cash from the amount of imprest sanctioned for such purposes.

(3)

Such cheques and all orders for making deposits or investments or for the withdrawal of amounts for disposal in any other manner from the funds of the Corporation, shall be signed by the managing director or by any officer of the Corporation authorised by the Board in this behalf.

(4)

No payments shall be made out of the accounts of the Corporation unless the expenditure is covered by the financial estimate referred to in section 26:

Provided that the Executive Committee may, at its discretion, authorise any expenditure to be incurred in anticipation of such estimates and the statement of expenditure so incurred shall be submitted to the Board at its next meeting :

Provided further that the Executive Committee may, in respect of any year sanction re-appropriation from one head of expenditure to another or from a provision made for one scheme to that for another subject to the condition that such re-appropriation shall not exceed ten percent of the sanctioned amount under the head of expenditure or for that scheme to which the amount is re-appropriated and a statement of such re-appropriation shall be submitted to the Board.

(5)

All monetary transactions shall be entered in the cash book, as soon as they are conducted, and attested by an officer of the Corporation duly authorised by the managing director in this behalf. The cash book shall be closed daily and completely checked by the managing director or the officer authorised by him in this behalf. At the end of each month, the managing director or the officer so authorised, shall verify the cash book and the cash in hand and record a signed and dated certificate to that effect.

(6)

All payments by the Corporation shall be made on bills or other documents duly prepared and passed by the managing

director or other officer authorised in this behalf. The paid vouchers shall be stamped "paid" or "cancelled" so that they cannot be used a second time. They should then be kept serially numbered and produced at the time of audit.

44.

Deposit in Bank or investment in securities of surplus funds.

(1)

Any funds of the Corporation not required for current expenditure may be placed in fixed deposit with the Reserve Bank or the State Bank or any subsidiary of the State Bank or any Scheduled or Cooperative Bank approved in this behalf by the Central Government or invested in the name of the Corporation in the securities of the Central Government or any State Government.

(2)

The placing of money in fixed deposit and the investment thereof and the disposal of money so placed or invested shall require the sanction of the Executive Committee :

Provided that short-term fixed deposits may be made and withdrawn in accordance with the requirements of the Corporation by the managing director.

45.

[Annual Statement of Account and Balance Sheet.

[Substituted by G.S.R. 1266, dated 31.8.1964]

- The Board shall cause the books of the Corporation to be balanced on the last working day of the month of March in each year and the annual accounts shall be set out as follows :-

(a)

an annual account of the Warehousing Fund comprising-

(i)

a balance sheet in [Form "AA"];

(ii)

income and expenditure account in Form "B"; and

(b)

an annual account of the General Fund comprising :

(i)

a balance sheet in Form "C";

(ii)

a profit and loss account in Form "D";

(iii)

a profit and loss appropriation accounting Form "E".]

[Form "A"

[Inserted by G.S.R. 1481, dated 29.9.1954.]

[See Rule 12(5)]

CENTRAL WAREHOUSING CORPORATION

Weof.....being a shareholder of the above Corporation holdingShares Noshereby appoint ofas our proxy to vote for us and on our behalf at the meeting of the Corporation to be held on day of for holding election and at any adjournment thereof. Signed this:day of]

Form [AA

[Relettered bt G.S.R. 1481, dated 29.9.1964]

]

(See Rule 45)

CENTRAL WAREHOUSING CORPORATION

(WAREHOUSING FUND)

Balance Sheet as on 31st March, 19

Previous year

Capital

and Liabilities

Current

year

Previous

year

Property

and Assets

Current

year

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

1. WEREHOUSING FUND :

1. LOANS TO :

(I) Opening Balance Add/Less: Surplus or Deficit as per Income
and Expenditure Account

(a) State Government :

Section 16(2)(a) ?..

Section 16(2)(b)

(b) State Warehousing Corporations.....

(II) Loans from Central Govt. under section 16(1)(b)

2. ADVANCES :

3. INVESTMENTS AT COST :

Opening Balance

(a) Central Govt. Securities.

Add : Loans received during the year.....

(b) State Govt. Securities

Less : Loans repaid during the year.....

(State details of paid-up and make values)

4. INTEREST RECOVERABLE ON :

2. CURRENT LIABILITIES

(1) Loans to -

(I) State Government..

(a) Interest on loans from Central Government....

(ii) State Warehousing Corporations..

(b) Others...

(2) Advances ?.

(3) Investment....

5. GRANTS ETC. RECEIVABLE.

6. BANK BALANCES :

(a) Fixed Deposit..

(b) Current Account ?

TOTAL Rs.

TOTAL Rs.

Form 'B'

(See Rule 45)

CENTRAL WAREHOUSING CORPORATION

(WAREHOUSING FUND)

Income and Expenditure Account for the year ending 31st March, 19

Previous year

Expenditure

Current year

Previous year

Income

Current year

Rs.

Rs.

Rs

Rs.

Rs.

Rs.

Rs.

1. INTEREST ON LOANS THE CENTRAL GOVERNMENT..

1. GRANTS RECEIVED FROM CENTRAL GOVERNMENT UNDER SECTION
16(1)(B)...

2. SUBSIDIES TO :-

(a) State Government...

(b) State Warehousing Corporations.....

2. INTEREST ON :-

(a) Loans to State Government under section 16(2)(b)

(b) Loans to State Government under section 16(2)(b)

(c) Loans to State Warehousing Corporations.....

(d) Central Government Securities.....

(e) State Government Securities

(f) Bank Deposits...

3. ADMINISTRATIVE EXPENSES

(Specify details, if necessary)

3. REFUND OF SUBSIDIES (UNUTILISED BY) :

(a) State Governments..

(b) State Warehousing Corporations..

4. REMISSION....

4. EXCESS OF EXPENDITURE OVER INCOME CARRIED TO WAREHOUSING
FUND ACCOUNT...

5. EXCESS OF EXPENDITURE OVER INCOME CARRIED TO WAREHOUSING
FUND ACCOUNT...

TOTAL Rs. _____

TOTAL Rs. _____

Form "C"

(See Rule 45)

CENTRAL WAREHOUSING CORPORATION

(GENERAL FUND)

Balance Sheet as at 31st March, 19

Previous

year

Capital

and Liabilities

Current

year

Previous

year
Property
and Assets
Current

year

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

1. SHARE CAPITAL :-

(a) AUTHORISED

?.....Shares of Rs.....each.

(b) ISSUED

?.....Shares of Rs.....each.

(Guaranteed by Government under section 5).

(c) SUBSCRIBED

?.....Shares of Rs.....each fully/party called up.

(See Scheduled I for details)

1. FIXED ASSETS (As per Schedule II attached)

Less : Calls in arrears due....

Add : Shares forfeited

2. RESERVES :-

(a) Reserve Fund under section 30(1).

(b) Reserve for Bad & Doubtful debts..

(c) Other Reserve.....

2. INVESTMENT AT COST :-

(a) Central Govt. Securities

(Market & paid-up values also to be indicated).

(b) State Govt. Securities

(c) State Warehousing Corporations (See Schedule III)

(d) Others.....

3. BONDS

3. GUARANTEES BY GOVERNMENT FOR PAYMENT OF DIVIDENDS/INTEREST

(As per contra).

4. DEBENTURES

Secured by ?.....

4. INTEREST ACCRUED ON INVESTMENTS.

5. BORROWINGS FROM :-

(a) Reserve Bank of India under section 27(2)(i)

(b) State Bank of India

(c) Central Government Secured by.

5. CURRENT ASSETS :-

(a) Stores & Spares

(b) Loose Tools (At cost or.....)

(c) Stock in Trade

(d) Warehousing & other charges accrued

(e) Sundry Debtors (Considered good & considered doubtful
to be specified)

(f) Loans and Advances

6. ADVANCES FOR PURCHASE OF AGRICULTURAL AND NOTIFIED COMMODITIES UNDER SECTION 11(e)
6. ADVANCES TO STATE WAREHOUSING CORPORATIONS FOR PURCHASE OF AGRICULTURAL AND NOTIFIED COMMODITIES UNDERSECTION 24(d)
7. SUBVENTION FROM CENTRAL GOVERNMENT FOR PATENT OF :

- (a) Guaranteed Dividend
- (b) Interest

7. ESTIMATED VALUE OF STOCK OF COMMODITIES HELD AS AGENT OF GOVERNMENT

8.OUTSTANDING LIABILITIES

8. CASH AND BANK BALANCES :-

- (a) Cash in hand.
- (b) Cash in the banks :-
 - (i) Reserve Bank of India
 - (ii) State Bank of India
 - (iii) Co-operative Banks
 - (iv) Others

9. PROVISION FOR TAXES

9. PROFIT AND LOSS ACCOUNT
(Balances as per account annexed)

10. UNCLAIMED DIVIDENDS

11. PROFIT AND LOSS ACCOUNT
(Balance as per account annexed)

TOTAL RS

TOTAL Rs.

I TO FROM 'C'

Central Warehousing Corporation

(GENERAL FUND)

of Subscribed Share Capital as on 31st March, 19

Sl.No

Particulars

No.of

Shares

Amount

Rs.

1. Central Government
2. State Bank of India
3. Other Scheduled Banks
4. Co-operative Societies
5. Insurance Companies including Life Corporation of India.
6. Investment Trusts
7. Other Financial Institutions
8. Recognised Associations dealing in agricultural produce etc. Companies dealing in agricultural produce etc.

TOTAL Rs.

II TO FROM 'C'

Central Warehousing Corporation

(GENERAL FUND)

of Fixed Assets on 31st March, 19

Sl.No.

Items

Cost to
1-4-
Additions
during the year
Sold,
transferred or written off during they year (at cost)
Gross
block
Depreciation
Balance
Balance
Up to 1-4-
During the
year
Deduction
on account of assets Sold, transferred or written off
Total
As on
31-.3-
As on 31stMar. of previous year
Rs
Rs
Rs
Rs
Rs.
Rs
Rs
Rs.
Rs.
Rs.
Rs.
1
Land....
2
Buildings...
3
Warehouses and Godowns
4
Vehicles
5
Plant and Machinery
6
Library
7
Furniture and Fixtures
8
Office Equipments
9
Laboratory Equipment
10
Disinfestation Equipment
11

Capital Works-in-Progress

Total Rs.

III TO FROM 'C'

Warehousing Corporation

(GENERAL FUND)

of Investment in Share Capital of State Warehousing Corporations as on 31st March, 19

Sl.No.

Name of

the State Warehouses Corporation

No. of

Shares

Amount Rs.

TOTAL Rs.

Form 'D'

(See Rule 45)

Central Warehousing Corporation

(GENERAL FUND)

Profit and loss Account for the year ending 31st March, 19

Previous

Year

Current

year

Previous

year

Current

year

Rs

Rs

Rs

Rs

Rs

Rs

To

1. Warehousing Licence Fee.

By

1. Warehousing Charges

2. Chemicals Consumed.

2. Interest On :

(a) Loans and Advances

(b) Securities :

(i) Central Govt.

(ii) State Govt.

(c) Bank Account

3. Pay and allowances of :-

(a) Chairman & Vice-Chairman.

(b) Managing Director

(c) Officers & Other Establishment

3. Dividends on shares held in State Warehousing Corporations.

4. Travelling allowances etc.

(a) Chairman & Vice-Chairman.

(b) Managing Director

(c) Officers & Other Establishment

4. Income from other investments

5. Wages

5. Miscellaneous Receipts including Agency Commissions

6. Repairs and Maintenance

6. Profit on sale of Assets

7. Rent, Rates and Taxes

7. Net Loss C/D

8. Insurance

9. Printing & Stationery..

10. Miscellaneous Expenditure

11. Publicity & Propaganda

12. Bank Charges

13. Auditor's Fees & Expenses

14. Interest On :

(a) Loans from Central Government

(b) Reserve Bank of India

(c) State Bank of India

(d) Bonds

(e) Debentures

15. Directors' Remuneration, Fees, Travelling Allowances,
etc.

16. Loans on Sale of Assets

17. Deprecation

18. Reserve for Bad & Doubtful Debts

19. Provision for Taxes

20. Net Profit O/D

TOTAL Rs.

Form 'E'

(See Rule 45)

Central Warehousing Corporation

(GENERAL FUND)

Profit and loss Account for the year ending 31st March, 19

Previous

year

Current

year

Previous

year

Current

year

Rs

Rs

Rs

Rs

Rs

Rs

To

1. Balance as per last Balance Sheet.

By

1. Balance as per last Balance Sheet.

2. Loss for the Year B/D.
2. Profit for the Year B/D.
3. Appropriation To:
 - (a) Reserve Fund under section 30(1)
 - (b) Other Funds (to be specified).
3. Grants from Central Government under section 14(1) (a).
4. Proposed Dividend
4. Balance C/O To Balance Sheet.
5. Balance C/O To Balance Seet.
- TOTAL Rs.
- TOTAL Rs.
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